ARRANGEMENT OF SECTIONS

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FIRST SCHEDULE: Fees.

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*] approved the following by-laws:—

Title

1. These by-laws shall be cited as the City of Masvingo (Control of Worship in Open Spaces) By-laws, 2025.

Application

2. These by-laws shall apply within the City of Masvingo area.

Interpretation

3. In these by-laws—

"authorised person'' means any person employed or delegated by City of Masvingo to carry out any functions prescribed in these by-laws;

"Council" means City of Masvingo;

"environmental health practitioner" means an environmental health officer (EHO) or Environmental Health Technician (EHT) registered as such by the Health Professions Council of Zimbabwe and employed by council;

"open space" means any open space to which the public or any section of the public has access or any area which has been designated for development under district plans but remains undeveloped and can be used for the purposes approved under these by-laws;

"permit" means permit issued in terms of these by-laws;

"permit fee" means a fee prescribed in terms of section 5;

"prescribed form" means the form for applying for the issue or renewal of a permit provided by Council.

Control of open space worship

4. No person or persons shall gather in an open space for purposes of worship unless a permit has been issued by the Council after payment of a fee specified in the First Schedule.

Permit and permit fees

5. (1) No person or persons shall gather in an open space for purposes of worship unless a permit has been issued by the Council after payment of a fee specified in the First Schedule.

(2) A permit issued or renewed in terms of these by-laws shall be in the form set out by Council.

(3) The holder of a permit who wishes to renew the permit shall apply to council for the renewal.

Designation of places for public worship

6. (1) Council shall designate places or areas where persons can gather for purposes of public worship provided that such areas have adequate sanitary facilities of a temporary or permanent nature approved by the Council.

(2) The facilities in subsection (1) should be inspected and approved by an Environmental Health Practitioner in terms of the Public Health Act [*Chapter 15:17*].

Application procedures

7. (1) An application for a permit to conduct open space worship shall be made to the Council, and shall be in the form prescribed by Council upon payment of the fee prescribed in the First Schedule.

(2) The Council may or may not approve such application taking into account the provisions of the Public Health Act [*Chapter 15:17*] and the Environmental Management Act [*Chapter 20:27*] and other Council by-laws including but not limited to Anti-litter by-laws.

(3) Application and the inspection report from the Environmental Health Practitioner as well as the building plans should be submitted to the Council prior to the erection of any temporary or permanent structures on the area.

(4) Upon approval, Council shall issue a permit with such conditions as it deems necessary in the circumstances.

(5) No person shall cut down any tree on the open space without prior council approval.

Days and times of worship

8. (1) Public worship shall be restricted from 0500 hours to 1800 hours and the days of worship shall be as stated in the permit.

(2) Time extensions may be granted by Council upon written application by interested persons, at a fee specified in the First Schedule.

Obstruction of access to an open space

9. (1) Any police officer or authorised person may direct any person who is directly or indirectly obstructing the use of any open space by or is a nuisance to any person worshipping in any open space to move away from such space as may be reasonable.

(2) No person or persons offending or causing a nuisance to those worshipping in such open space shall refuse to comply with any such direction given in terms of subsection (1).

Cancellation of permit

10. (1) Council shall cancel a permit to any person who fails to comply with any conditions of the permit.

(2) Any permit cancelled in terms of subsection (1) shall not be renewed until the cause of such cancellation is rectified and the holder shall return the permit to Council within forty-eight (48) hours of being notified of such cancellation.

(3) Any person who fails to return the permit upon being notified to do so in terms of subsection (4) shall be liable to a fine specified in the Second Schedule.

Offences and penalties

11. (1) Any person who contravenes or fails to comply with any provision of these by-laws shall be liable to a fine specified in the Second Schedule.

(2) Any person who fails to comply with any liability emanating from his or her contravention of any of the offences stipulated in these by-laws within 90 days, shall be guilty of an offence and liable to a fine not exceeding level 3 or to imprisonment to a period not exceeding two years or to both such fine and such imprisonment.

FIRST SCHEDULE

FEES

Section	Description	Fees (US$)
4 and 5	Application for permit	10,00
4 and 5	Permit fees (monthly)	20,00
5	Permit renewal fees	20,00
7	Inspection fees	20,00
8	Application for extension of hours on the permit	10,00

SECOND SCHEDULE

PENALTIES

Section	Description	Penalty (US$)
4	Open space worshipping without permit	20,00
6	Designated place without adequate sanitary facilities	20,00
7(5)	Cutting down trees on the open space	20,00
9	Obstruction of access to open space	100,00
10(3)	Failure to return permit upon notification	20,00

The fines and penalties are payable in local currency at the prevailing interbank rate.